

SENATE BILL 365

By Briggs

AN ACT to amend Tennessee Code Annotated, Title 13,
Chapter 7, relative to zoning.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 13-7-106(b)(5), is amended by adding the language "property rights; constitutional rights;" immediately after the language "public hearing procedure;".

SECTION 2. Tennessee Code Annotated, Section 13-7-106(b)(9), is amended by deleting the subdivision.

SECTION 3. Tennessee Code Annotated, Section 13-7-107(a), is amended by deleting the subsection and substituting instead:

(a)

(1) The county legislative body shall provide and specify, in its zoning or other ordinance, general rules to govern the organization, procedure, and jurisdiction of the board of appeals, which rules shall not be inconsistent with this part, and the board may adopt supplemental rules of procedure, not inconsistent with this part or such general rules.

(2) The general and supplemental rules of procedure shall require:

(A) Maintenance of a record of the board's proceedings, including resolutions, transactions, motions, and actions, which are public records;

(B) Election from its membership of a chair and other officers as the board deems necessary;

(C) The inclusion of written statements of reasons for the board's actions as part of each motion, action, and decision, including such findings of fact and statements of material evidence as the board may deem pertinent; and

(D) The presentation of relevant proof by parties to the proceedings.

SECTION 4. Tennessee Code Annotated, Section 13-7-108, is amended by designating the existing language as subsection (a) and adding the following as a new subsection (b):

(b) Building commissioners and other administrative officials who grant or deny building permits shall inform, in writing, the person receiving the grant or denial of the person's right to appeal to the board of zoning appeals.

SECTION 5. Tennessee Code Annotated, Section 13-7-109, is amended by designating the existing language as subsection (a) and adding the following as a new subsection (b):

(b) When issuing a decision of the board of zoning appeals, the board shall inform, in writing, the parties to the proceeding of their right to seek judicial review of the board's decision pursuant to title 27, chapter 9.

SECTION 6. Tennessee Code Annotated, Section 13-7-205(b), is amended by deleting the subsection and substituting instead:

(b)

(1) The chief legislative body shall provide and specify, in its zoning or other ordinance, general rules to govern the organization, procedure, and jurisdiction of the board of appeals, which rules shall not be inconsistent with this part or part 3 of this chapter, and the board may adopt supplemental rules of procedure, not inconsistent with this part or part 3 of this chapter or such general rules.

(2) The general and supplemental rules of procedure shall require:

(A) Maintenance of a record of the board's proceedings, including resolutions, transactions, motions, and actions, which are public records;

(B) Election from its membership of a chair and other officers as the board deems necessary;

(C) The inclusion of written statements of reasons for the board's actions as part of each motion, action, and decision, including such findings of fact and statements of material evidence as the board may deem pertinent; and

(D) The presentation of relevant proof by parties to the proceedings.

SECTION 7. Tennessee Code Annotated, Section 13-7-205(c)(5), is amended by adding the language "property rights; constitutional rights;" immediately after the language "public hearing procedure;".

SECTION 8. Tennessee Code Annotated, Section 13-7-205(c)(9), is amended by deleting the subdivision.

SECTION 9. Tennessee Code Annotated, Section 13-7-206, is amended by adding the following as a new subsection:

(c) Building commissioners and other administrative officials who grant or deny building permits shall inform, in writing, the person receiving the grant or denial of the person's right to appeal to the board of zoning appeals.

SECTION 10. Tennessee Code Annotated, Section 13-7-207, is amended by designating the existing language as subsection (a) and adding the following as a new subsection (b):

(b) When issuing a decision of the board of zoning appeals, the board shall inform, in writing, the parties to the proceeding of their right to seek judicial review of the board's decision pursuant to title 27, chapter 9.

SECTION 11. This act takes effect July 1, 2025, the public welfare requiring it.